

103	Alday v Orange Coast Title Company, 2024-01415025	MOTION FOR SUMMARY JUDGMENT/ADJUDICATION The Court is inclined to continue the hearing on this MSJ; the question is for how long. Alday requests a continuance under CCP § 437c(h) Trial of this case was previously continued due to the pendency of a case in Los Angeles Superior Court, Alday v. Gonzalez, 22STCV28111, to avoid inconsistent verdicts. It appears that that case is scheduled for trial on 09/21/2026. Yet Alday’s counsel declares that he has agreed with counsel for Jose Gonzalez (the defendant in the other case, and the witness whose testimony is necessary to oppose the MSJ in this case) to depose Gonzalez on 09/17/2026. The Court expects the parties to be prepared to confirm these dates. Assuming that the deposition of Mr. Gonzalez can be completed on 09/21/2026, the Court will provide the parties with dates for supplemental opposition and reply papers, and a continued date for the hearing.
104	Barretto v. Rivian Automotive, 2025-01519084	DEMURRER TO CROSS-COMPLAINT – SUSTAINED WITH LEAVE TO AMEND Cross-Defendant Universal Protection Service, LP dba Allied Universal Security Services (Universal) demurs to all four causes of action in Cross-Complainant Rivian Automotive, LLC’s (“Rivian”) Cross-Complaint (“XC”). The underlying Complaint in this action was filed by Leopoldo Barretto—an employee of Universal—who alleges he was injured in the course and scope of his employment when he slipped and fell at the premises owned and controlled by Rivian. (XC ¶¶5-6.) Barretto alleges that the premises were dangerous due to poor lighting and improper maintenance, which caused his injury. (XC ¶ 6.) Barretto did not name Universal as a defendant. Universal has submitted evidence that Barretto has initiated a workers compensation claim for his injury. (RJN, Exh. 1.) Rivian’s Cross-Complaint asserts causes of action against Universal for (1) contractual indemnity; (2)